



Notification Waiver Determination

WHP Global and G-III – Marc Jacobs

Acquisition	MJ Topco, LLC, a joint venture owned by MJWHP, LLC (together with its connected entities, WHP Global) and a subsidiary of G-III Apparel Group Ltd (together with its connected entities, G-III), through Majestic AcqCo, LLC, applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Marc Jacobs Holdings, LLC (Marc Jacobs), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	13 July 2026

Parties to the Acquisition	WHP Global is a US-headquartered brand management firm. It acquires manages and licences global consumer brands. It invests in high-growth distribution channels, including global expansion pathways and digital commerce platforms. WHP Global owns the intellectual property rights to a number of leading retail brands, of which only the following are sold in Australia: Rag & Bone, Lotto, Tru, and G-STAR. WHP Global is indirectly controlled by Oaktree Capital Group, LLC (Oaktree), which together with its affiliated investment funds and other entities, comprises the 'Oaktree group'. Oaktree is in turn jointly controlled by Brookfield Asset Management Inc. (Brookfield). Oaktree and Brookfield are global investment firms. G-III provides brand licensing and management services, in addition to the design, sourcing, distribution, marketing and retail supply of apparel, globally and in Australia. G-III currently owns and licenses a diverse portfolio of over 30 globally recognised fashion brands including DKNY, Donna Karan and Karl Lagerfeld. Marc Jacobs is a luxury fashion label headquartered in New York, USA. It offers high-fashion ready-to-wear apparel, handbags, shoes, cosmetics and fragrances. In Australia, its activities are limited to the wholesale and online sales of its apparel, handbags, shoes, cosmetics and fragrances.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between the parties in the supply of brand licensing and management services for consumer products, and in the manufacture, distribution, and retail supply of luxury goods including bags, small leather goods, apparel, footwear, cosmetics, and fragrances in Australia b. any increment in share of supply arising from the Acquisition is estimated to be small c. there are alternative providers of the relevant goods and services, both in Australia and globally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act